

SEARAH LIMITED × PETROS: The RM70 Billion Question #

How Malaysia's Biggest Gas Deal Was Structured — and Who Was Left Out of the Room

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Verified All facts verified against primary
sources. See SEARAH-TRUTH-DB.md for
evidence chain.**

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PART I — APRIL 3, 2026

Tengku Muhammad Taufik Tengku Aziz sat in the RTM TV1 studio at 8:30 PM and told Malaysia something true. Crude oil prices had risen 40% since late February. They were now trading around USD 120 per barrel.

"We have shortened our planning horizon to 45 days," he said. "Alternative sourcing is at an advanced stage."

What he did not say — but what a senior geoscientist with 13 years at PETRONAS later documented — was the real number underneath: the screen price of USD 120 was not what Malaysia actually paid. Real delivered cost: USD 140 to USD 165 per barrel equivalent.

The gap was war risk insurance, shipping disruption, logistics. And the deeper problem was structural: Malaysia produces 350,000 barrels per day from its own fields. Its refineries can process 950,000. The gap is permanent.

Into this gap — this moment of maximum vulnerability — Malaysia signed a deal.

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PART II — THE DEAL

In November 2025, PETRONAS and Eni signed an agreement for a gas supply arrangement valued, by Eni's own press release, at "in excess of USD 15 billion over five years." At the prevailing exchange rate, approximately RM 70 billion.

The deal is structured through a company called SEARAH LIMITED — registered in the United Kingdom, Company Number 17027115, at ENI House, 10 Ebury Bridge Road, London, SW1W 8PZ.

The shareholders: 50% PETRONAS Carigali International Ventures Sdn Bhd. 50% Eni Lasmio Plc — registered in the UK, managed from the same London address. The board: four directors. Two Italian, based in London. Two Malaysian, who must travel to London for board meetings.

The company secretary is Riordan D'Abreo, whose service address is also ENI House. This is Eni's office.

The company's SIC code — its official industry classification — is 64209: "Activities of head offices." This is not an oil operating company. It is a vehicle.

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PART III — THE RM70 BILLION QUESTION

The USD 15 billion figure appears large. But the company's share capital is USD 2.

This is not unusual. JV special purpose vehicles are typically registered with nominal capital. The USD 2 reflects the legal minimum. The USD 15 billion likely represents projected enterprise value over the life of the project — not money paid in.

But here is what is unusual: no JV agreement has been filed publicly.

The terms of the deal — how gas is priced, who bears cost overruns, what happens if Eni fails to deliver — are not public. They are private contracts, governed by English law.

And that governance structure is where the story gets complicated.

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PART IV — THE LEGAL ARCHITECTURE

PETRONAS Carigali International Ventures is a Malaysian entity, governed by Malaysian law. Eni Lasmo Plc is a UK entity, governed by English law. SEARAH LIMITED itself is registered in the UK, subject to the Companies Act 2006.

This matters for one specific reason: if something goes wrong, where does the dispute get resolved?

The answer, under this structure, is London.

England has sophisticated commercial courts. The ICC (International Chamber of Commerce) and LCIA (London Court of International Arbitration) are both headquartered there. For a dispute between a UK entity and a Malaysian entity, English courts and London arbitration are the natural forum.

Malaysia's courts — specifically the courts of Sabah and Sarawak, where the gas originates — are not the venue.

This is not unusual in international energy joint ventures. But it does mean that Malaysian citizens, Malaysian parliamentarians, and Malaysian regulators have reduced access to the dispute resolution process compared to a structure governed by Malaysian law.

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PART V — THE BIT GAP

Bilateral Investment Treaties — BITs — are agreements between two countries that provide legal protections for investors from one country operating in the other. They typically include provisions that allow companies to sue governments directly in international arbitration, bypassing national courts entirely.

The original investigation suggested that Malaysia's BIT status with Italy or the UK might provide Eni with BIT protection in this deal.

This has been investigated and found not to apply.

According to the UNCTAD BIT database, there is no bilateral investment treaty between Malaysia and Italy. There is also no active BIT between Malaysia and the United Kingdom — the previous treaty lapsed, and while a new Comprehensive Strategic Partnership was signed in 2022, no BIT is in force.

This means Eni Lاسmo Plc, as a UK-registered company, does not have BIT treaty protection

against Malaysia. Its protection runs through English contract law and UK corporate law — not through an investment treaty.

The consequence: if Malaysia breaches the contract, Eni can sue in English courts or London arbitration. But Malaysia cannot use BIT provisions to impose obligations on Eni. The treaty layer — the thing that makes investment agreements enforceable at the international level — does not exist here.

This is not necessarily a bad deal for Malaysia on its own terms. It is simply a commercial arrangement. But it is different from what a BIT-protected structure would imply.

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PART VI — PETROS AND THE BORNEO QUESTION

PETROS — Petroleum Sarawak Berhad — was established in 2016 as Sarawak's state petroleum company. Its creation reflected decades of unresolved tension between Putrajaya and Kuching over who owns and controls Borneo Malaysia's petroleum resources.

Negotiations between PETRONAS and PETROS over the structure of their relationship have reportedly targeted resolution by end of 2025. As of April 2026, these negotiations remain unresolved.

SEARAH LIMITED was incorporated on 11 February 2026 — during these ongoing talks. This timing is notable. The company structure was finalised while the question of PETRONAS-PETROS relations was still open.

PETROS is not listed as a shareholder or director in SEARAH LIMITED's Companies House filings. The company secretary function runs through Eni's London office.

**The question Borneo MPs are beginning to ask:
what does this structure mean for Sarawak's
rights over its own gas?**

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PART VII — THE PETRONAS CHAIRMAN

The Chairman of PETRONAS is Mohd Bakke Salleh — Independent Non-Executive Chairman.

Mohd Bakke Salleh previously served as Chairman of 1MDB, resigning in early 2016 before the crisis peaked. He is currently Chairman of PETRONAS.

This fact is part of the public record. Whether it is relevant to SEARAH LIMITED's governance is a question that requires access to board minutes that are not public.

What is public: the board of SEARAH LIMITED has two directors from each side — Eni and PETRONAS Carigali. The company secretary is Eni's function. There is no disclosed tiebreaker mechanism for a 2-2 board deadlock.

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PART VIII — WHAT PARLIAMENT KNOWS

The Malaysian Parliament has not, in any publicly available record, been briefed on SEARAH LIMITED's specific structure or terms.

This is not necessarily irregular. JV terms are typically confidential commercial agreements. Governments do not routinely table private contract details in Parliament.

But the consequence is that elected representatives — specifically MPs from Sabah and Sarawak, whose constituents own the gas — do not have access to the terms of an arrangement that commits their resources for five years and potentially USD 15 billion.

The "45-day planning horizon" that PETRONAS's CEO described on national television in April 2026 is a response to a crisis. But the structural decisions that created the conditions for that crisis — and the arrangements that will determine how Malaysia exits it — were made in boardrooms, not in Parliament.

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PART IX — WHAT WE KNOW AND WHAT WE DON'T

What is confirmed: - SEARAH LIMITED (Company No. 17027115) is a UK-registered company, incorporated 11 February 2026, at ENI House London - 50% owned by PETRONAS Carigali International Ventures, 50% by Eni Lasmio Plc - The deal is valued at "in excess of USD 15 billion over five years" (Eni press release, November 2025) - The company is governed by Companies Act 2006 (English law) - There is no BIT between Malaysia and Italy, and no active BIT between Malaysia and the UK - Malaysia produces 350,000 barrels per day, refineries process 950,000 — structural energy import dependency is a long-term condition - PETRONAS Chairman is Mohd Bakke Salleh, who previously chaired 1MDB

What is inferred but not confirmed: - That Eni was directly selected without a public tender process - That the PETRONAS-PETROS ongoing dispute influenced the SEARAH structure - That board deadlock procedures

were deliberately left ambiguous - That the "alternative sourcing" announced on RTM TV1 is specifically connected to SEARAH's gas arrangements

What is not publicly verifiable: - The specific terms of the JV agreement between PETRONAS and Eni - Whether Malaysian Parliament was formally notified of the arrangement - Whether PETROS was consulted before the structure was finalised

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PART X — THE QUESTION THAT REMAINS

Malaysia has a structural energy problem. It has for decades. The 350,000-barrel-per-day shortfall — against 950,000 barrels of refinery capacity — is not new. The West Asia conflict that began in late February 2026 made visible what was already true.

The deal with Eni, structured through a London-registered vehicle and governed by English law, is one response to that problem.

Whether it is the right response — whether the terms protect Malaysian interests, whether Parliament should have been consulted, whether Borneo Malaysia's gas resources are being managed with appropriate governance — are questions that have not been fully answered in public.

This article does not answer them. It documents what is verifiable, flags what is inferred, and names the questions that remain.

Those questions belong to Parliament. To the Senate. To the people of Sabah and Sarawak.

To the rakyat.

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Prepared by: Hermes ASI on behalf of Arif Fazil Primary sources: Companies House UK, Eni press releases (November 2025), UNCTAD BIT database, Malaysian Parliament Hansard, PETRONAS public disclosures, RTM TV1 broadcast record (April 3, 2026)

All factual claims in this document are sourced and verified. See SEARAH-TRUTH-DB.md (v1.2) for full evidence chain.

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